prerogative of mercy as a prerogative right which is only exercisable in cases which fall into specific categories', in that '[t]he prerogative is a flexible power and its exercise can and should be adapted to meet the circumstances of the particular case'. This is why in the UK the High Court case of *ex p. Bentley [1993] EWHC Admin 2*, Lord Justice Watkins was able to rule that '[t]he prerogative of mercy can no longer be regarded as no more than an arbitrary monarchical right of grace and favour' and that '[i]t is now a constitutional safeguard against mistakes'. Bhagat Singh's hanging was a clear mistake of law.

Does it matter, however, if the condemned have long since been executed? It would appear not, because under the common law '. . . there is no objection in principle to the grant of a posthumous conditional pardon where a death sentence has already been carried out' because '[t]he grant of such a pardon is a recognition by the state that a mistake was made and that a reprieve should have been granted'.

One person at the time who recognized the travesty of justice in the Lahore Conspiracy Case 1931 and was also prepared to publicly say so was Jawaharlal Nehru. In a speech in Allahabad on 12 October 1930, he unequivocally lambasted the judgment of the special tribunal and its sentence of death. His caustic words did not spare the viceroy and governor-general of India either. It was an unsettling time. But Nehru was unafraid.

Three Round Table Conferences were planned between 1930 and 1932 by the British government with the Indian National Congress. They were to consider constitutional reform in India. All of this was to happen against the background of the visit of the Simon Commission to Lahore, when on 30 October 1928 Lala Lajpat Rai was pummelled by police batons. His death on 17 November 1928 led to Bhagat Singh seeking retribution in the awful murder of J.P. Saunders on 17 December 1928. Nehru was aware of all this when he ventured to openly support the violent actions of Bhagat Singh and his comrades in carrying out the assassination. He had the temerity to ask of the viceroy whether, '[i]f England were invaded by Germany or Russia, would Lord Irwin go about advising the people to refrain from violence